

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

ANGELA R. MOBLEY,

Plaintiff,

vs.

THOMAS J. WITT AND
IOWA MOTOR TRUCK TRANSPORT, INC.

Defendants.

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Case No.

COMPLAINT

COMES NOW the Plaintiff, by and through her counsel of record Jeffrey A. Wilson and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff, Angela R. Mobley is a citizen of the State of Kansas, and is domiciled at 3108 S. Mt. Carmel, Wichita, KS 67217.
2. Defendant, Thomas J. Witt, is a citizen of Hazel County, South Dakota and may be served at Defendant's domicile at 28 Williams, Hazel, SD 57242.
3. Defendant, Iowa Motor Truck Transport, Inc., is a domestic for-profit corporation, incorporated in the State of Iowa with its principal place of business in the State of Iowa. It may be served through its registered agent, Peter Gouge, 365 Cottonwood Dr., Garner, IA 50438.

B. JURISDICTION

4. This action is brought pursuant to 28 U.S.C. § 1332, in that the amount of controversy exceeds seventy-five thousand dollars (\$75,000.00) exclusive of interest and costs and on the basis of diversity of citizenship.

C. NATURE OF ACTION

5. This is a civil action for personal injuries suffered by Plaintiff, Angela R. Mobley.
6. This action arises out of a motor vehicle collision on I235 and South West Street in Sedgwick County, Kansas on March 11, 2020.
7. Plaintiff was traveling southbound on West Street and the semi-truck and trailer being operated by Defendant, Thomas J. Witt, and owned by Defendant, Iowa Motor Truck Transport, Inc. turned in front of Plaintiff causing Plaintiff to collide with the rear portion of the trailer being operated by Defendant, Thomas J. Witt, and owned by Defendant, Iowa Motor Truck Transport, Inc.

D. CAUSE OF ACTION - NEGLIGENCE

8. At all times relevant herein, Defendant, Thomas J. Witt, was an employee and/or agent of Defendant, Iowa Motor Truck Transport, Inc., and was operating in the course and scope of his employment with Defendant, Iowa Motor Truck Transport, Inc.
9. Defendant, Thomas J. Witt was hired, supervised, and trained by Defendant, Iowa Motor Truck Transport, Inc.

10. The actions and omissions of Defendants Thomas J. Witt and Iowa Motor Truck Transport, Inc. (both independently and through driver Thomas J. Witt under Respondeat Superior and Vicarious Liability) were negligent and careless for the following reasons:
 - a. Failure to yield the right-of-way;
 - b. Following too closely;
 - c. Inattentive operation of a motor vehicle;
 - d. Failure to maintain a proper lookout;
 - e. Failure to drive with reasonable care;
 - f. Failure to give warning;
 - g. Failure to drive at a safe speed;
 - h. Failure to maintain control of a motor vehicle; and
 - i. Failure to take evasive action.
11. Defendant, Iowa Motor Truck Transport, Inc. was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Thomas J. Witt, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to other motorists.
12. The negligence of Defendants, Iowa Motor Truck Transport, Inc. and Thomas J. Witt directly and proximately caused the motor vehicle collision that injured Plaintiff, Angela R. Mobley.
13. Iowa Motor Truck Transport, Inc., is a motor carrier and operating under authority through the United States Department of Transportation with an assigned D.O.T. number of 313015.

14. Upon information and belief, the semi-trailer truck being operated by Thomas J. Witt was owned, maintained, dispatched, supervised, controlled and repaired by Iowa Motor Truck Transport, Inc. and was used as a commercial motor vehicle in both intrastate and interstate business making it subject to the Federal Motor Carrier Safety Administration regulations under 49 C.F.R. Sections 381 et. seq.
15. 49 C.F.R. § 390.3(e)(1) & (2) provide that every driver and employee shall be instructed regarding and shall comply with all applicable regulations contained in the FMCSR.
16. 49 C.F.R. § 390.5 provides that "motor carrier" means a for-hire motor carrier or a private motor carrier. That term includes a motor carrier's agents, officers, and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers.
17. Iowa Motor Truck Transport, Inc. was at all material times a "motor carrier" and an "employer" of its driver Thomas J. Witt in regard to the operation of a commercial motor vehicle as defined in 49 C.F.R. §382.107.
18. The negligence of Defendant, Iowa Motor Truck Transport, Inc., and their employee/agent Defendant, Thomas J. Witt, directly and proximately caused the collision and the personal injuries and damages of Plaintiff.
19. As a result of Defendants, Iowa Motor Truck Transport, Inc. and Thomas J. Witt's negligence, Plaintiff sustained severe personal injuries. Plaintiff has or is expected to sustain past medical expenses, future medical expenses, past lost wages, future lost wages, medical mileage, and past and future non-economic damages such as pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against defendants for an amount in excess of \$75,000.00 plus costs and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiff demands a pretrial conference and a trial by jury.

DESIGNATION OF PLACE OF TRIAL

Plaintiff designates Wichita, Kansas as the place for trial in this matter.

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